

STATE OF NEW YORK

5339--A

2025-2026 Regular Sessions

IN SENATE

February 20, 2025

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- recommitted to the Committee on Health in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to providing for dentist loan repayment and practice support

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 5-a of section 2807-m of the public health law
2 is amended by adding two new paragraphs (c-1) and (d-1) to read as
3 follows:

4 (c-1) Dentist loan repayment program. Up to one million two hundred
5 thousand dollars each state fiscal year for the next three fiscal years
6 beginning on or after the effective date of this paragraph shall be set
7 aside and reserved by the commissioner from the regional pools estab-
8 lished pursuant to subdivision two of this section and shall be avail-
9 able for purposes of dentist loan repayment in accordance with subdivi-
10 sion ten-a of this section. Notwithstanding any contrary provision of
11 this section, sections one hundred twelve and one hundred sixty-three of
12 the state finance law, or any other contrary provision of law, such
13 funding shall be allocated regionally with one-third of available funds
14 going to New York city and two-thirds of available funds going to the
15 rest of the state and shall be distributed in a manner to be determined
16 by the commissioner without a competitive bid or request for proposal
17 process as follows:

18 (i) Funding shall first be awarded to repay loans of up to eight
19 dentists who train in general or pediatric dentistry in teaching general
20 hospitals, including in community clinic settings owned by or affiliated
21 with such hospitals, and who enter and remain in general or pediatric

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 dentistry practices in underserved communities, as determined by the
2 commissioner.

3 (ii) After distributions in accordance with subparagraph (i) of this
4 paragraph, all remaining funds shall be awarded to repay loans of
5 dentists who enter and remain in general or pediatric dentistry prac-
6 tices in underserved communities, as determined by the commissioner,
7 including but not limited to dentists working in general hospitals,
8 other health care facilities or qualified private practices.

9 (iii) In no case shall less than fifty percent of the funds available
10 pursuant to this paragraph be distributed in accordance with subpara-
11 graphs (i) and (ii) of this paragraph to dentists identified by general
12 hospitals.

13 (d-1) Dentist practice support. Up to three million dollars for each
14 fiscal year for the next three fiscal years beginning on or after the
15 effective date of this paragraph shall be set aside and reserved by the
16 commissioner from the regional pools established pursuant to subdivision
17 two of this section and shall be available for purposes of dentist prac-
18 tice support. Notwithstanding any contrary provision of this section,
19 sections one hundred twelve and one hundred sixty-three of the state
20 finance law, or any other contrary provision of law, such funding shall
21 be allocated regionally with one-third of available funds going to New
22 York city and two-thirds of available funds going to the rest of the
23 state and shall be distributed in a manner to be determined by the
24 commissioner without a competitive bid or request for proposal process
25 as follows:

26 (i) Preference in funding eight awards, to support costs incurred by
27 dentists trained in general or pediatric dentistry in teaching general
28 hospitals, including in community clinic settings owned by or affiliated
29 with such hospitals, who thereafter establish or join practices in
30 underserved communities, as determined by the commissioner.

31 (ii) After distributions in accordance with subparagraph (i) of this
32 paragraph, all remaining funds shall be awarded to dentists to support
33 the cost of establishing or joining practices in underserved communi-
34 ties, as determined by the commissioner, and to hospitals and other
35 health care providers to recruit new dentists to provide services in
36 underserved communities, as determined by the commissioner.

37 (iii) In no case shall less than fifty percent of the funds available
38 pursuant to this paragraph be distributed to general hospitals in
39 accordance with subparagraphs (i) and (ii) of this paragraph.

40 § 2. Section 2807-m of the public health law is amended by adding two
41 new subdivisions 10-a and 13 to read as follows:

42 10-a. Dentist loan repayment program. (a) Beginning upon the start of
43 the next fiscal year beginning on or after the effective date of this
44 subdivision, the commissioner is authorized, within amounts available
45 pursuant to subdivision five-a of this section, to make loan repayment
46 awards to general or pediatric dentists or other dentistry specialties
47 determined by the commissioner to be in short supply, licensed to prac-
48 tice dentistry in New York state, who agree to practice for at least
49 three years in an underserved area, as determined by the commissioner.

50 (b) Loan repayment awards made to a dentist pursuant to paragraph (a)
51 of this subdivision shall not exceed the total qualifying outstanding
52 debt of the dentist from student loans to cover tuition and other
53 related educational expenses, made by or guaranteed by the federal or
54 state government, or made by a lending or educational institution
55 approved under title IV of the federal higher education act. Loan
56 repayment awards shall be used solely to repay such outstanding debt.

1 (c) In the event that a three-year commitment pursuant to the agree-
2 ment referenced in paragraph (a) of this subdivision is not fulfilled,
3 the recipient shall be responsible for repayment in amounts which shall
4 be calculated in accordance with the formula set forth in subdivision
5 (b) of section two hundred fifty-four-o of title forty-two of the United
6 States Code, as amended.

7 (d) The commissioner is authorized to apply any funds available for
8 purposes of paragraph (a) of this subdivision for use as matching funds
9 for federal grants for the purpose of assisting states in operating loan
10 repayment programs pursuant to section three hundred thirty-eight I of
11 the public health service act.

12 (e) The commissioner may postpone, change or waive the service obli-
13 gation and repayment amounts set forth in paragraphs (a) and (c),
14 respectively of this subdivision in individual circumstances where there
15 is compelling need or hardship.

16 (f) (i) When a dentist is not actually practicing in an underserved
17 area, such dentist shall be deemed to be practicing in an underserved
18 area if such dentist practices in a facility or dentist's office that
19 primarily serves an underserved population as determined by the commis-
20 sioner, without regard to whether the population or the facility or
21 dentist's office is located in an underserved area.

22 (ii) In making criteria and determinations as to whether an area is an
23 underserved area or whether a facility or dentist's office primarily
24 serves an underserved population, the commissioner may make separate
25 criteria and determinations for different specialties.

26 13. Notwithstanding any provision of law to the contrary, applications
27 submitted for the dentist loan repayment program pursuant to paragraph
28 (c-1) of subdivision five-a of this section and subdivision ten-a of
29 this section or the dentist practice support program pursuant to para-
30 graph (d-1) of subdivision five-a of this section, shall be subject to
31 the following:

32 (a) Awards shall be made from the total funding available for new
33 awards under the dentist loan repayment program and the dentist practice
34 support program, with neither program limited to a specific funding
35 amount within such total funding available;

36 (b) An applicant may apply for an award for either dentist loan repay-
37 ment or dentist practice support, but not both;

38 (c) An applicant shall either: (i) agree to practice for three years
39 in an underserved area and each award shall provide up to fifty thousand
40 dollars for each of the three years; or (ii) agree to practice as a
41 dentist engaged in private practice in an underserved area and each
42 award shall provide up to seventy thousand dollars for each of the three
43 years; and

44 (d) To the extent practicable, awards shall be timed to be of use for
45 job offers made to applicants.

46 § 3. This act shall take effect immediately and shall be deemed to
47 have been in full force and effect on and after the start of the next
48 fiscal year beginning on or after such effective date.